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File No.: EXP202207294

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 16, 2022, a complaint was filed with registration number REGAGE22e00024949734 with the Spanish Agency for Data Protection against VODAFONE ONO, S.A.U. with NIF A62186556 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint regarding the receipt of a commercial call on June 15, 2022, at 16:28 hours from the line ***PHONE.1, to their mobile line ***PHONE.2 registered in the Robinson List since May 18, 2021.

Along with the notification, documentation proving the registration of the receiving line in the Robinson List and a recording of the mentioned call in which the interlocutor offers fiber optic and indicates calling on behalf of VODAFONE is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on July 11, 2022, as recorded in the acknowledgment of receipt in the file.

On August 18, 2022, a response was received in this Agency indicating that:

- 1) It has been verified that the line ***424 owned by the complainant is included both in the Robinson list of ADigital and in the internal Robinson list of that entity for the purpose of excluding advertising calls.
- 2) Likewise, the data controller has verified that the calling numbers do not appear in its database as associated with its collaborators, who make solicitation calls on behalf of that entity.
- 3) The complained party deduces that it does not seem possible to relate the receipt of the call alleged by the complainant with any activity originating from the complained party or its distribution agents.
- 4) A copy of the letter sent to the complainant, informing of the actions taken regarding the submitted complaint, has been provided.

THIRD: On September 12, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

A search was conducted for the operator of the calling telephone number indicated in the complaint in the CNMC Numbering Register, and the corresponding entity operating this telephone number was identified.

Requested from the final operator the holder of the telephone number ***PHONE.1 indicated in the complaint, on September 27, 2022, a letter was received in this Agency sent by LEAST COST ROUTING TELECOM, S.L. stating that the holder is:

STG GROUP, S.A.C with RUC (NIF) 20606242507 and address at CAL. JOSÉ PEREYRA, 586 URB.PANAMERICANA NORTE, C.P. 07001- LIMA – PERU.

The contact details of their representative office in Spain are TECH TELECOM LEGAL SERVICES, S.L. located at CALLE ANDRÉS MELLADO, Nº 31, LOCAL 18, C.P. 28015 – MADRID – SPAIN.

Phone: ***PHONE.3 Email: ***EMAIL.1.

This is a Reseller; a copy of the contract between the parties is attached to this document. The line has been activated since June 7, 2022, and to date remains active. It has not been deactivated or had its ownership changed.

Upon reviewing our call registration system, we confirm the occurrence of the call.

It provides a contract for unidirectional interconnection services and Annex I Activity of reseller, both dated 6/7/22 signed with STG.

The contract states in section II that the CLIENT is a company of Peruvian nationality, also dedicated to the Telecommunications Services Sector, which is authorized with the necessary permits and authorizations from the National Commission of Markets and Competition (CNMC), when these permits...

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or authorizations are mandatory for the development of their activity in Spain; and that they commit to keep them in force during the term of the contract.

In Annex, the ADDITIONAL PROVISION FIFTH. OBLIGATIONS AND REQUIREMENTS OF THE RESELLER section 5.1 indicates the obligation to: Be registered as an operator for the activity of "Fixed telephony resale – direct access" before the "National Commission of Markets and Competition" of Spain (CNMC).

It has been verified on the dates of 10/7/22 and 11/28/22 that STG is not listed as a reseller in the CNMC, as well as the commercial data of said company in Peru.

Information requested from TECH TELECOM LEGAL SERVICES S.L., on October 27, 2022, was received in this Agency, stating that:

STG GROUP contracted a service with our office related to its registration as a Reseller in the CNMC; to date, they have not authorized us to represent them legally before any other body of the Spanish Public Administration.

Upon receiving this request, we immediately forwarded it to the email address ***EMAIL.2 and offered to represent them in this matter before the Spanish Agency for Data Protection.

Information requested from STG GROUP necessary to respond to the request has not yielded results. We have no record that STG GROUP, as of this date, has legal representatives in Spain.

They provide the contact details of STG GROUP S.A.C. with RUC: 20606242507

Legal Address: Cal. José Pereyra Nro. 586 Urbanization: Panamericana Norte

District/City: Los Olivos Department: Lima, Peru Email ***EMAIL.2

Legal Representative: A.A.A.

Information requested from LEAST COST ROUTING TELECOM, S.L. on October 28 and December 28, 2022, and January 21, 2023, was received in this Agency on February 8, 2023, stating that:

They confirm the details of the representation office in Spain of STG. STG GROUP communicated to us that TECH TELECOM LEGAL SERVICES, S.L. was their Representation office in Spain. In a phone call with TECH TELECOM LEGAL SERVICES, S.L., they informed us that STG GROUP ultimately did not contract the services to perform these functions and sent us a "Responsible Declaration" that they provided in a request related to this same company; and which we attach with this document.

It is verified that this document is the same one sent by TTLS in their response.

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Information requested from STG GROUP S.A.C. on February 13, 2023, acknowledges receipt on February 17, without having obtained a response as of the date of this report.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and according to the provisions of Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories

Article 48 of Law 9/2014, of May 9, General Telecommunications Law (in force at the time the infringement was committed), under the heading "Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories," provides in its section 1.b), the following:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights:

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b) To oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous section and to be informed of this right.

III

Conclusion

Through the investigations carried out by this Agency, it has been determined that the calling line belongs to STG GROUP, S.A.C, a company located in Peru. We do not have evidence that STG GROUP currently has legal representatives in Spain.

Therefore, based on the information provided in the previous paragraphs, it should be noted that the LGT does not confer the Spanish Agency for Data Protection with competencies over a company located in Peru. Thus, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ONO, S.A.U. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative

Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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